# Legal Research Compendium

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## Preface

This compendium teaches legal research as a process. It follows one Florida problem from the first research plan to a short client email, and it adds a Boolean search reference and an abbreviated citation guide.

The process has five steps: plan the research, consult secondary sources, find primary law, expand and update the law, and organize and analyze the results. Each step includes a written example and a summary table or sequence. The examples show how to explain research choices. They do not replace your own research or your instructor's requirements.

### How to Use This Compendium

1. Read the Introduction and the Boolean search section before starting a problem.
2. Work through Steps 1 to 5 in order on your own assignment.
3. Compare your written explanation of each step with the examples.
4. Check every authority in a citator before relying on it.
5. Follow your instructor's research and citation requirements where they differ from this compendium.

# I. Introduction: The Importance of Legal Research

Legal research is the process of finding, reading, updating, and organizing the law that answers a client's question. This compendium uses a five-step framework: plan a research strategy, consult secondary sources, find primary law, expand and update primary law, and organize and analyze the research. Part II shows how to report the result in a short research email.

One Florida problem runs through every step. The Parched Partin, a restaurant and bar in St. Cloud, Florida, served alcohol to Ashley Owens, who later crashed her car into Amar Singh. The client asks whether the bar is likely to be liable for Mr. Singh's injuries.

### Recommended Tools Table

| Tool | Purpose | Example Usage | Time Estimate |
|---|---|---|---|
| Westlaw or Lexis | Search secondary sources, statutes, cases, and citators | "bar liability serving alcohol 'drunk driving'" | 15 to 20 minutes per step |
| AI | Brainstorm search terms and check the organization of a draft | "List synonyms for habitual drunkard that I can test as search terms." | 5 to 10 minutes |

**AI Ground Rules.** AI is not a source of law. Do not upload personal, client, confidential, or restricted information. Verify every statute, case, and quotation in a database and check it in a citator before relying on it. Follow your instructor's and school's policies on AI use.

### Five-Step Overview Table

| Step | Focus | Product |
|---|---|---|
| 1. Research plan | Parties, facts, assumptions, question, search terms, and jurisdiction | Written plan |
| 2. Secondary sources | Overview of the rule, terms of art, and citations to primary law | Leads to statutes and cases |
| 3. Primary law | Statute text, history, and initial cases | Quoted rule and case summaries |
| 4. Expand and update | Annotations, citing references, headnotes, Key Numbers, and citators | Verified list of authorities |
| 5. Organize and analyze | Case chart and jury issues | Selected authorities |
| Part II. Research email | Rule, exceptions, cases, and application | Short IRAC email |

## II. Boolean Search Terms and Usage

Boolean operators refine searches in databases such as Westlaw and Lexis. They use terms such as AND, OR, and NOT, quotation marks, parentheses, wildcards, and proximity connectors. The examples below use the dram shop problem, including the query “bar liability serving alcohol ‘drunk driving’”.

Symbols and connectors differ by platform and change over time. Confirm them in the current Westlaw or Lexis help before relying on a search.

### Boolean Operators Table

| Operator | Purpose | How to Use | Example |
|---|---|---|---|

| | | | |
|---|---|---|---|
| AND | Requires all terms | Place between terms to narrow results. | “liability AND ‘drunk driving’” finds results that contain both. |
| OR | Requires any term | Place between synonyms to broaden results. | “bar OR restaurant OR ‘commercial establishment’” captures variations. |
| NOT | Excludes terms | Westlaw uses the percent symbol. Lexis uses AND NOT. | “liability % minor” excludes results that contain minor. |
| Exact phrase | Matches a phrase exactly | Enclose the phrase in quotation marks. | “drunk driving’” |
| Parentheses | Groups terms | Enclose terms for complex logic. | “(liability OR liable) AND (intoxicated OR drunk)” |
| ! root expander | Matches every ending of a root | Add the symbol at the end of the root. | “intoxicat!” matches intoxicate, intoxicated, and intoxication. |
| universal character (Westlaw) | Replaces one letter inside a word | Place the symbol where the letter varies. | “dr*nk” matches drunk and drink. |
| Proximity | Terms within a set number of words | Westlaw uses /n. Lexis uses w/n. | “bar /5 liability” finds bar and liability within five words. |
| Same paragraph | Terms in the same paragraph | Westlaw uses /p. Lexis uses w/p. | “knowledge /p ‘habitual drunkard’” |

Start broad, then refine with filters for jurisdiction and date. A narrower version of the dram shop query adds the state: “bar liability serving alcohol ‘drunk driving’ AND Florida”.

## III. Step 1: Formulating a Research Plan

Create a written plan before opening a database. The plan identifies the parties, the jurisdiction, the area of law, the legal question, and the search terms.

### Key Process Bullets

- List parties and facts in bullets.
- State assumptions in sentences.
- Frame the question with its key elements.
- Brainstorm search terms with synonyms.
- Specify the jurisdiction hierarchy.

### Step-by-Step Writing Example for Step 1

1. Purpose: “Before I logged on to Westlaw or Lexis, I wanted to create a good framework for my research and make sure that my understanding of the issue was correct.”
2. Facts and parties: “First, I identified significant facts, such as the people and entities involved, and their relationships with one another. This helped me to frame the legal question that I was trying to answer for Ms. King. The Parched Partin is our client, a restaurant and bar in St. Cloud, Florida, where Ashley Owens was served alcohol on the night that she later crashed her car into Amar Singh.”
3. Assumptions: “Given that Ms. Owens only lives a few blocks from The Parched Partin, and the accident occurred when she was

driving from The Parched Partin to her house, it is likely the car accident occurred in St. Cloud, Florida as well. Normally I would want to know exactly where the accident occurred, but based on what I have been given, I will assume it occurred in St. Cloud."

4. Question: "Based on the above information, I framed the legal question as follows: Under Florida law, is a commercial bar liable when a regular customer of legal drinking age is served alcohol at the bar, leaves the bar visibly impaired, and, while attempting to drive home, causes a car accident that injures a third party, given that the bartender who had been serving the customer was a new employee but knew that the customer planned to drive home from the bar?"
5. Terms: "Next, I extracted some search terms from my legal question to use to start researching the issue. The list I came up with is as follows: commercial bar, bar, restaurant, commercial establishment; legal drinking age, majority-age, not a minor; customer, patron, regular; intoxicated, drunk; drunk driver; car accident; injury; injury to third party; bartender, employee; served, served alcohol; knowledge, knew; liability."
6. Jurisdiction: "For the third part of the research plan, I determined the jurisdiction of the dispute. St. Cloud is located in Osceola County, Florida. Osceola County is in Florida's 9th Judicial Circuit. The Fifth District Court of Appeal is the next highest court with binding jurisdiction, and above that is the Florida Supreme Court."

### Step 1 Checklist Table

| Element | Description | Example |
|---|---|---|
| Parties | List roles | Ashley (driver), Dorothy (bartender) |
| Jurisdiction | Courts in order of authority | Osceola County, 9th Circuit, 5th DCA, Florida Supreme Court |
| Area of law | Subject area | Torts, negligence, personal injury |
| Question | Full sentence with key elements | Bar liability for a habitual drinker who caused a third-party injury |
| Terms | Synonyms and Boolean connectors | intoxicat! AND liab! |

## IV. Step 2: Secondary Sources

Consult secondary sources for an overview of the rule and for leads to primary law.

### Process Steps

- Access the database's secondary sources.
- Browse the table of contents for relevant chapters.
- Search by keyword for precision.
- Check the index for terms of art.
- Extract rules, citations, and new search terms.

### Step-by-Step Writing Example for Step 2

1. Access: "After formulating a plan, I then consulted secondary sources using Westlaw. Since I am researching Florida state law,

I thought *Florida Jurisprudence 2d* would be a useful secondary source, so I navigated to it by clicking Secondary Sources on the main page, then selecting Jurisprudence and Encyclopedias, and finally selecting *Florida Jurisprudence 2d* from the list of filtered publications, which then launched the content page for *Florida Jurisprudence 2d*."

2. Table of contents: "On the *Florida Jurisprudence 2d* content page, I began scrolling through the table of contents to see if I could identify any chapters that may be relevant to our case, keeping my search terms in mind. Since our case concerns liability of a restaurant or bar for serving someone alcohol when that person then causes an accident, I thought Alcoholic Beverages looked promising, so I clicked to expand the options. I then clicked on chapter IX Civil Incidents, Liabilities, and Remedies and A. In General and B. Injury by or to Persons to Whom Intoxicants Are Furnished. I looked through A. In General first and read through the following sections: section 157 (Civil incidents, liabilities, and remedies regarding alcoholic beverages, generally), section 158 (Proof of foreseeability by proprietor of establishment serving alcoholic beverages of danger to patrons), section 159 (Premises liability as to premises where alcoholic beverages are sold), and section 160 (Responsibility of employer of establishment serving alcoholic beverages for employee behavior). These sections were close to what I was looking for, but not exactly relevant to my research question."

3. Keyword search: “Moving on, I found section 161 (Injury caused by or to persons to whom alcoholic beverages are sold or furnished, generally) under the subheading B. Injury by or to Persons to whom Intoxicants Are Furnished was far more relevant to my research question. 2A Fla. Jur. 2d Alcoholic Beverages section 161, Westlaw (database updated September 2022). It discussed the common law rule regarding liability of a bar to third parties and set out two exceptions. So far, section 161 is the most relevant to my research question, but I wanted to see if I could locate more relevant material using a keyword search of *Florida Jurisprudence 2d*. I returned to the *Florida Jurisprudence 2d* main content page and in the search box typed the following search query: bar liability serving alcohol ‘drunk driving’. The first search result is section 160 from the Alcoholic Beverages chapter, which I had already seen before and concerns employer liability for employee behavior. But the next two results are new and look very promising: 2A Fla. Jur. 2d Alcoholic Beverages section 166 and section 167.”
4. Evaluation: “These sections are both under Alcoholic Beverages, IX. Civil Incidents, Liabilities and Remedies, B. Injury by or to Persons to Whom Intoxicants Are Furnished, 3. Liability when Liquor is Dispensed to Habitual Drinker. Section 166, Liability when liquor sold or furnished to habitual drinker, generally, may prove to be relevant to our facts because Ashley was a regular at the bar, so she may qualify as a ‘habitual drunkard’, which could

trigger an exception to the relevant statutory requirements. This term of art, 'habitual drunkard', is a good search term, so I added it to my list. Section 167, Knowledge requirement applicable to liability for selling or furnishing alcoholic beverages, discusses the requirement for knowledge that someone is a habitual drunkard, which will prove relevant given that Dorothy, the bartender, only had the knowledge from the conversations that she had overheard as well as remembering Ashley from being there a few days before. Within section 167, I noted references to the 'Dram Shop Act', which appears to be a shorthand name for relevant statute. I added that to my list of search terms. I feel confident that I have found three highly relevant sections within *Florida Jurisprudence 2d*, but just to make sure I am not missing anything, I went from section 167 back to the table of contents and reviewed the neighboring sections to see if any of them seemed relevant. None of the other nearby sections appeared to be relevant. It was probably overkill, but since I was in Westlaw and the *Florida Jurisprudence 2d* index was right there, I tried one more search strategy. I went to the index and located 'Dram Shop Act' under the 'Ds', which directed me to a couple of specific sections. First was section 90 of the Venue chapter, which turned out to be a discussion of where a lawsuit against a bar should be filed where the claim is for injury caused by a drunk patron. There did not seem to be any possible dispute about venue for The Parched Partin's case, though. The only other index entry under 'Dram

Shop Act' pointed to a section within the 'Alcoholic Beverages' chapter, which corroborated that I had been focusing on the most relevant chapter in *Florida Jurisprudence 2d*. I found very relevant information that linked to on-point primary law, just from my research in *Florida Jurisprudence 2d*. In the interest of time, I did not think it was necessary to look at any other secondary sources, such as law reviews, journals or treatises."

**Secondary Source Sequence**

1. Open the secondary sources in Westlaw.
2. Browse the table of contents: Alcoholic Beverages, then IX Civil Incidents, then B. Injury by or to Persons to Whom Intoxicants Are Furnished, then sections 157 to 162.
3. Run a keyword search: bar liability serving alcohol 'drunk driving'. The search yields sections 166 and 167.
4. Check the index for "Dram Shop Act." The venue entry (section 90) does not apply.
5. Extract the rules, citations, and terms of art, such as "habitual drunkard."

## V. Step 3: Finding Primary Law

Locate statutes and cases from the footnotes of the secondary sources.

**Process Bullets**

- Quote the statute and explain its relevance.

- Check the statute's history, including enactment and amendments.
- Summarize one or two cases with their facts and holdings.
- Link the law to the client's facts, such as the bartender's knowledge.

**Step-by-Step Writing Example for Step 3**

1. Leads: "Sections 161 and 166 in the Alcoholic Beverages chapter of *Florida Jurisprudence 2d* both cite to several cases and to a single statute: section 768.125, Florida Statutes (2021). Section 167 of that chapter cites a number of cases but no statutes."
2. Quote: "Section 768.125 provides that a person who sells or furnishes alcoholic beverages to a person of lawful drinking age shall not thereby become liable for injury or damage caused by or resulting from the intoxication of such person, except that a person who willfully and unlawfully sells or furnishes alcoholic beverages to a person who is not of lawful drinking age or who knowingly serves a person habitually addicted to the use of any or all alcoholic beverages may become liable for injury or damage caused by or resulting from the intoxication of such minor or person."
3. Relevance: "This statute is extremely relevant because, so long as the facts of the case do not trigger the exceptions listed, this would free The Parched Partin from liability for Mr. Singh's injuries. Because Ms. Owens is 25 years old, the exception

concerning minors is inapplicable. The only exception that might apply is the one concerning habitual alcoholics."

4. History: "Before getting into case law, I checked the statute's history. I observed that it was originally enacted in 1980, which is the first date listed under the Credits section in Westlaw underneath the statute's text. As there are no other session laws listed in the Credits, this statute has never been amended."
5. Cases: "Before moving on to Step 4, I wanted to make note of a couple of cases I found among the footnotes of *Florida Jurisprudence 2d* that seemed to be especially relevant. In the footnotes to section 161 of the *Florida Jurisprudence 2d* Alcoholic Beverages chapter, I found *Luque v. Ale House Management*, 962 So. 2d 1062 (Fla. 5th DCA 2007). This case had to do with a restaurant or bar that served a regular customer alcohol to the point of intoxication, and the customer was subsequently involved in an automobile accident from driving drunk and was injured. The customer filed suit against Ale House and alleged that they violated section 768.125, Florida Statutes, by knowingly continuing to furnish alcohol to him despite knowing that he may be a habitual drinker, which would trigger an exception under the statute. The Fifth District Court of Appeal held that the cause of action was not barred completely and that the record was not complete enough to preclude liability. Another relevant primary source I found in the *Florida Jurisprudence 2d* footnotes, specifically the footnotes to section 167, was *Ellis v. N.G.N. of*

*Tampa*, 586 So. 2d 1042 (Fla. 1991). This is from the Florida Supreme Court, so it is binding on all the state courts in Florida. According to *Florida Jurisprudence 2d*, *Ellis* established that liability for damages caused by habitual drinkers who have been furnished alcohol by an establishment has to include the proven element that the establishment did so knowingly, which does not require the plaintiff to show advance written notice to the bar nor show that the bar acted willfully and unlawfully."

**Primary Law Sequence**

1. Collect the leads in the secondary-source footnotes.
2. Quote the statute: section 768.125.
3. Check the credits: enacted in 1980 with no amendments.
4. Summarize the cases: *Luque* and *Ellis*.
5. Link the law to the facts, such as the bartender's knowledge.
6. Move to Step 4 to expand and update.

## VI. Step 4: Expanding and Updating Primary Law

Use annotations, citing references, headnotes, and citators to find more authority and confirm that each source is still good law.

**Process Bullets**

- Review the Notes of Decisions for the statute.
- Choose one good case and use its headnotes and Key Numbers.
- Check backward and forward citations.
- Check the statute and each case in a citator.

**Step-by-Step Writing Example for Step 4**

1. Expansion: "Having found several relevant primary sources in my secondary source, the next step was to expand from those findings into additional primary sources so that I could get a complete picture of the relevant law."
2. Notes: "From the West Annotated Florida Statutes webpage for section 768.125, I checked the annotations, called Notes of Decisions in Westlaw, to identify additional relevant case law. I clicked on Notes of Decisions (80) at the top of the page. To narrow my research from the initial 80 results, I scrolled through the Table of Contents to locate the relevant Notes of Decisions, and identified the following topics as the most relevant for my purposes: 8. Service of habitual drunkards in general; 9. Knowledge, service of habitual drunkards; 15. Summary judgment."
3. Results: "Even limiting myself to these topics, there were still a lot of annotations, so I used the jurisdiction filter to limit the results to just the Florida Supreme Court and the Fifth DCA. That left annotations for the following cases: *Persen v. Southland Corp.*, 656 So. 2d 453 (Fla. 1995); *Ellis v. N.G.N. of Tampa, Inc.*, 586 So. 2d 1042 (Fla. 1991); *Sabo v. Shamrock Communications, Inc.*, 566 So. 2d 267 (Fla. 5th DCA 1990), *approved sub nom. Peoples Rest. v. Sabo*, 591 So. 2d 907 (Fla. 1991); *Gonzalez v. Stoneybrook W. Golf Club, LLC*, 225 So. 3d 891 (Fla. 5th DCA 2017); *Evans v. McCabe 415, Inc.*, 168 So. 3d 238 (Fla. 5th DCA

2015); *Luque v. Ale House Management, Inc.*, 962 So. 2d 1062 (Fla. 5th DCA 2007); *Kirkman Road Sports Pub and Rest., Inc. v. Dempsey*, 723 So. 2d 384 (Fla. 5th DCA 1998)."

4. Lexis and one good case: "Because Westlaw and Lexis independently develop the case annotations they assign to statutes, I next checked the case annotations in Lexis to be sure I was not missing an important case. In the Lexis Notes to Decisions for section 768.125, I found the most relevant annotations under the heading Torts: Negligence: Duty: Alcohol Providers: General Overview. Among the case annotations, I found several of the same cases that were among the Westlaw Notes of Decisions, including *Sabo v. Shamrock Communications, Inc.*, 566 So. 2d 267 (Fla. 5th DCA 1990). In *Sabo*, the plaintiff was injured in an automobile accident caused by an intoxicated individual who had been furnished alcohol by the defendant establishment. The court reversed summary judgment in favor of the defendant, stating that there was a genuine material issue of fact as to whether the defendant knew that the individual was a habitual drinker, and this should be decided by a jury. Since it is from a binding jurisdiction, is relevant, and is popping up in both Westlaw and Lexis case annotations for section 768.125, I decided to use *Sabo* as my one good case from which to expand to other case law."
5. Citations and headnotes: "Staying in Lexis and before expanding from *Sabo*, I next looked at the Citing Decisions of the statute

and filtered the results by jurisdiction to see only decisions by the Florida Supreme Court and then only decisions by the Fifth DCA. Among the results, I again found *Gonzalez v. Stoneybrook W. Golf Club, LLC*, 225 So. 3d 891 (Fla. 5th DCA 2017). Returning to Westlaw, I went back to the *Sabo* decision, my one good case, and read it. To look backward, at earlier primary authority that may be relevant, I looked over the cases that the *Sabo* decision cited. However, many of the cited authorities addressed the sale of alcohol to minors and therefore were not relevant to The Parched Partin's situation. The *Sabo* court states that it is addressing the knowledge requirement of section 768.125, Florida Statutes, as it applies to a habitually addicted adult, as a matter of first impression. Next, to look forward, at later cases that may be relevant, I clicked on the Citing References link at the top of the *Sabo* decision and then Citing Cases. There are 7 decisions that cite *Sabo*, but a couple of them are from Colorado state court. The rest of the cases, which look relevant to the research, are *Ellis v. N.G.N. of Tampa, Inc.*, 586 So. 2d 1042 (Fla. 1991); *Hayes Robertson Group v. Cherry*, 260 So. 3d 1126 (Fla. 3d DCA 2018); *Murphy v. S. Mut. Mgmt. Corp.*, 936 So. 2d 786 (Fla. 4th DCA 2006); *Gonzalez v. Stoneybrook W. Golf Club, LLC*, 225 So. 3d 891 (Fla. 5th DCA 2017); *Evans v. McCabe 415, Inc.*, 168 So. 3d 238 (Fla. 5th DCA 2015). Next, to find other primary authority on the same topic, even if they are not linked by citation to *Sabo*, I looked through the *Sabo* headnotes, topics, and Key

Numbers listed under West Headnotes. *Sabo* has four headnotes, and all of them are relevant. Starting with the first headnote, it reads 'Genuine issues of material fact existed, precluding summary judgment for bar, on whether bar knowingly served driver sufficient alcoholic drinks to render him intoxicated with knowledge that driver was habitually addicted to use of alcoholic beverages. West's F.S.A. section 768.125.' There is a link that reads 3 Cases that cite this headnote. To expand my research to cases that do not cite to *Sabo*, I used the Key Numbers assigned to this headnote. I clicked on one of the most granular classifications, 228k181(33) (Tort cases in general). Even with my jurisdiction set to Florida (State and Federal), there are still 1,184 results, so I used the filters to limit the results to just Florida Supreme Court and Fifth DCA cases. Most of the 33 results do not concern the Dram Shop Act. I returned to the *Sabo* headnotes, selected a different one, Headnote 3, and clicked on 23Hk1038 (Knowledge or Intent of Provider). Of the nine search results, four are from federal court, so I used the Jurisdiction filter to limit the results to just Florida DCA decisions. The first result (*Salerno*) has to do with an employee who became intoxicated at work and was struck by a train while walking home, where the court held section 768.125 did not apply because the employer was not an alcohol vendor, so it is not relevant. Two of the results are from *Sabo* itself. The others look possibly relevant, but one is from the Fourth DCA and therefore not binding (*Okeechobee*

*Aerie 4137*), and the other is from the Second DCA and has a red flag (*Ellis v. N.G.N. of Tampa, Inc.*). The *Ellis* case caught my eye because it has the same name as the Florida Supreme Court case I saw mentioned in *Florida Jurisprudence 2d* and again in the *Sabo* Citing Cases: *Ellis v. N.G.N. of Tampa*, 586 So. 2d 1042 (Fla. 1991). Clicking on the Second DCA's *Ellis* decision, I saw that the reason it has a red flag is that the Second DCA's decision was quashed by the Florida Supreme Court in *Ellis v. N.G.N. of Tampa*, 586 So. 2d 1042 (Fla. 1991). This confirmed my impression that the Supreme Court's *Ellis* decision is an important one."

6. Citators: "I read through the Supreme Court's *Ellis* decision, and then looked at the headnotes and Key Numbers. I also checked the Citing References to see what cases have cited to *Ellis*. I found 30 results, and 25 of those are from Florida. Further filtering the Citing Cases to just Florida Supreme Court and Fifth DCA cases, I got nine results, including several cases I have seen before. . . . Since I have tried several different research techniques and I am seeing the same cases again and again, I feel that I have done enough expanding. I knew I needed to make use of a citator, either Shepard's or KeyCite, to make sure all my primary sources are still good law. Since I was in Lexis, I Shepardized the statute and the cases I found. Section 768.125 has a green diamond with a white plus sign, meaning that it has positive subsequent treatment, specifically it was deemed

constitutional in *Barnes v. B.K. Credit Service, Inc.*, 461 So. 2d 217 (Fla. 1st DCA 1984). Therefore, I could rely on this statute as good law for my current issue. Turning to the cases, *Sabo v. Shamrock Communications, Inc.*, 566 So. 2d 267 (Fla. 5th DCA 1990) has a green diamond with a white plus sign, indicating positive subsequent treatment. . . . *Ellis v. N.G.N. of Tampa, Inc.* has a yellow triangle, so I knew I needed to look into that. . . . The grounds on which *Persen* distinguished *Ellis* do not apply to The Parched Partin, so I was confident I could still rely on *Ellis*. The results of the rest of my Shepardizing are noted in the case chart in Step 5. The next step was to organize my findings and decide which of them I would use in my answer to Ms. King."

**Expansion Sequence**

1. Review the Notes of Decisions for section 768.125 and filter by jurisdiction. The review yields *Sabo* and *Ellis*.
2. Select one good case: *Sabo*.
3. Look backward at the authorities that *Sabo* cites. It addressed the knowledge requirement as a matter of first impression.
4. Look forward at the seven decisions that cite *Sabo*, including *Gonzalez* and *Evans*.
5. Use the headnotes and Key Numbers, such as 23Hk1038, and filter to Florida district court decisions.
6. Check each authority in a citator. Green and yellow treatment flags need review.

7. Set aside authority that is not relevant or not binding, such as the minor-alcohol cases and non-Florida decisions.

## VII. Step 5: Organizing and Analyzing Research

Use a chart to organize the cases and to decide which ones to use.

**Process Bullets**

- Chart each case by binding status, parallel facts, distinguishing facts, and whether it favors the client.
- Flag issues that a jury would decide, such as evidence of habitual addiction.
- Explain why you selected each case, including whether it is binding and how closely it fits.

**Step-by-Step Writing Example for Step 5**

1. Chart: “Step Five is organizing and analyzing the research. I organized the cases interpreting section 768.125 in the Case Chart below. The chart shows whether each case is binding, its parallel facts, its distinguishing facts, whether it favors the defendant, and its citator treatment.”
2. Jury: “There is a question of fact for the jury as to whether Ashley could be considered a habitual drinker.”
3. Analysis and selection: “Analyze. *Luque v. Ale House Management, Inc.* had some very similar facts to The Parched Partin’s case, but the decision itself was largely irrelevant as it dealt with establishing a cause of action where the plaintiff

was the drunk patron and the issues were whether the patron had a first-party claim under section 768.125 and whether his intoxication caused the accident. By contrast, in *Sabo v. Shamrock Communications, Inc.*, the plaintiff was an injured third party, like Mr. Singh, and the decision laid out specific facts that a court could consider in determining if the intoxicated driver was habitually addicted to alcohol. *Sabo* also concluded that circumstantial evidence was enough to warrant a genuine issue of fact and thus could be submitted to the jury. It is from the Fifth DCA and its decision was approved by the Florida Supreme Court, so it is binding. I will definitely use *Sabo* in my email answer. Another case that I saw frequently was *Ellis v. N.G.N. of Tampa, Inc.* There was a yellow flag associated with *Ellis*, but the negative treatment did not warrant a rejection of this case. *Persen v. Southland Corp.* declined to extend *Ellis* to retail establishments serving closed container alcohol, which is irrelevant since the case at hand is not about a retail establishment. *Ellis* is potentially helpful to our client since it held that serving an individual multiple drinks on one occasion would be insufficient to meet the knowingly requirement. All other things being equal, I would prefer authority from the highest court, but when I looked in the Citing References in Westlaw for section 768.125, Florida Statutes, I found there were only ten cases from the Florida Supreme Court that cited to that statute. The only two relevant Florida Supreme Court

cases were *Ellis* and *Peoples Rest. v. Sabo*. I found a number of Fifth DCA cases, such as *Evans* and *Gonzalez*, which were helpful in that they solidified the frequently expressed holding that circumstantial evidence was enough to give rise to material issues of fact on both the habitually addicted requirement and the knowingly served requirement. Considering the nature of the authority (binding versus persuasive) and the content of the decisions, the two cases I decided to use in the email are *Sabo* (5th DCA) and *Ellis* (Florida Supreme Court)."

## Case Chart

| Case | Binding? | Parallel Facts | Distinguishing Facts | Favorable to Defendant? | Citator |
|---|---|---|---|---|---|
| *Sabo v. Shamrock* (566 So. 2d 267, 1990) | Yes (5th DCA, approved by Florida Supreme Court) | Third-party injury from a drunk patron's crash | Staff knew the patron's habits over time | No (genuine fact issue for jury on knowledge) | Green (positive) |
| *Ellis v. N.G.N.* (586 So. 2d 1042, 1991) | Yes (Florida Supreme Court) | Multiple drinks to a potential habitual drinker | Self-injury claim; one occasion | Yes (insufficient for knowledge) | Yellow (distinguished in *Persen*, but applicable) |
| *Gonzalez v. Stoneybrook W. Golf Club, LLC* (225 So. 3d 891, 2017) | Yes (5th DCA) | Third-party crash after serving a regular patron | Patron drank at the club on many occasions with staff knowledge | No (reversed summary judgment; circumstantial evidence created a jury issue) | Green (positive) |

## VIII. Writing the Research Memo or Brief

Use IRAC in the discussion. The email below reports the results of the five-step process to the client's attorney.

### Process Bullets

- Give a brief answer first.
- State the rule and its exceptions.
- Use IRAC for each issue.
- Weave the facts into the analysis.
- End with a conclusion.

### Step-by-Step Writing Example

1. Opening: "Dear Ms. King: You asked me to research and assess whether our client, The Parched Partin, is likely to be held liable for Mr. Singh's injuries and damages from the car accident caused by Ms. Owens. While the case is not a slam dunk, it is reasonably likely that The Parched Partin will not be held liable."
2. Rule: "Under Florida statutory law, normally a restaurant that serves alcohol is not liable for injury or damage caused by the intoxication of its patrons. Section 768.125, Florida Statutes (2021). However, the statute sets out two exceptions to this general rule. The restaurant could be liable if it (1) sells to a minor or (2) knowingly serves a person habitually addicted to the use of any or all alcoholic beverages. *Id.* It is clear that Ms. Owens is not a minor, so the first exception does not apply."

3. Issue 1: "As to whether Ms. Owens can be found to be habitually addicted to alcohol, this will most likely come down to a specific factual investigation to be determined by a jury. In *Sabo v. Shamrock Communications, Inc.*, 566 So. 2d 267, 267 (Fla. 5th DCA 1990), *approved sub nom. Peoples Rest. v. Sabo*, 591 So. 2d 907 (Fla. 1991), a patron left the defendant bar intoxicated and caused an automobile accident that injured Sabo. The court found that there was sufficient evidence to permit a jury to conclude the drunk patron was habitually addicted to alcohol. *Id.* at 269. . . . The court in *Sabo* made it clear that circumstantial evidence was enough to submit the question to a jury."
4. Issue 2: "If it is assumed that Ms. Owens does meet the habitually addicted requirement, the fact that Ms. Dodd was recently hired may work in favor of The Parched Partin. . . . The *Ellis* court distinguished serving the individual a substantial number of drinks on multiple occasions, which would be circumstantial evidence of knowledge, from multiple drinks on one occasion, which would be insufficient to establish the restaurant's knowledge. *Id.* Here, it was Ms. Dodd's first week on the job and this was only the second time that she had seen Ms. Owens at the Parched Partin. However, Ms. Dodd did overhear Ms. Owens state, I drank less tonight than I usually drink on a Tuesday night. We should argue, pursuant to *Ellis*, that there is insufficient evidence of knowledge as a matter of law, but it is

possible that the court would deem this to be a factual question for the jury to resolve."

5. Conclusion: "In conclusion, liability requires showing both that Ms. Owens was a habitual drunkard and that the restaurant knew of this condition when it served her alcohol on the night of the accident. The Parched Partin can escape liability if there is a failure of proof on either of these points. It would seem to be a factual question whether Ms. Owens was habitually addicted to alcohol, and it is difficult to predict what the jury might conclude about this. Even if Ms. Owens is found to be a habitual drunkard, there is at least an argument that The Parched Partin did not know of that condition when it served her that night because it was only the bartender's second time seeing Ms. Owens. However, there is some evidence, based on what the bartender heard, to suggest that the bartender knew more about Ms. Owens and her drinking habits than just what she observed that night. Consequently, while there is a good argument that The Parched Partin lacked the requisite knowledge to be found liable, it is not certain that this argument will prevail."

## Memo IRAC Table

| IRAC | Focus | Example |
|---|---|---|
| Issue | Question plus key fact | Is Ms. Owens habitually addicted (a jury question under *Sabo*)? |
| Rule | Statute and case | Section 768.125 exception for knowingly serving a person habitually addicted |

| | | |
|---|---|---|
| Analysis | Apply the rule and address the counterargument | The statement about drinking less than on a usual Tuesday is circumstantial evidence; the counterargument is the bartender's limited contact. |
| Conclusion | Outcome and uncertainty | A jury may decide the habitual addiction question. |

# IX. Abbreviated Citation Guide

Follow the Legal Citation Handbook for Bluebook or Indigo Book rules. The examples use Florida cases and statutes.

## Cases Table

| Element | Supreme Court | District Court of Appeal |
|---|---|---|
| Name | *Jones v. Utica Mut. Ins. Co.* | *Allstate Ins. Co. v. Greenstein* |
| Full citation | *Jones v. Utica Mut. Ins. Co.*, 463 So. 2d 1153 (Fla. 1985). | *Allstate Ins. Co. v. Greenstein*, 308 So. 2d 561 (Fla. 3d DCA 1975). |

## Abbreviated Statutes Table

| Context | Format | Example |
|---|---|---|
| Citation sentence | § [Num.], Fla. Stat. ([Year]). | § 768.125, Fla. Stat. (2021). |
| In text | Section [Num.], Florida Statutes ([Year]). | Section 768.125, Florida Statutes (2021). |

## Abbreviated Signals Table

| Type | Signal | Example |
|---|---|---|

| | | |
|---|---|---|
| Supportive | *See* | *See Sabo*, 566 So. 2d at 269 (holding that the question was for the jury). |
| Comparative | *Cf.* | *Cf. Gonzalez*, 225 So. 3d at 892 (addressing frequency). |